



CHAPTER xvii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Bridlington Brighton and Hove Halifax Oldham and Pembroke. A.D. 1924.
[14th July 1924.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 and the Local Government Act 1888 : 38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament : 51 & 52 Vict.
c. 41.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 5) Act 1924. Short title

A.D. 1924.

SCHEDULE.

*Bridlington
Order.*

BOROUGH OF BRIDLINGTON.

*Provisional Order for partially repealing altering
and amending certain local Acts.*

WHEREAS the Borough of Bridlington (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875 and there are in force in the Borough the unrepealed provisions of the Bridlington Local Board Acts 1889 and 1894 and the Bridlington Corporation Acts 1904 and 1920 (which are hereinafter together referred to as "the Local Acts" and each of which is hereinafter referred to as the Act of the year in which it was passed);

And whereas by the Local Acts provision is made with respect to the maintenance management alteration and improvement of a promenade and garden or pleasure ground in the Borough known as "the Princes Parade";

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order partially to repeal alter or amend the Local Acts in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be partially repealed altered or amended so that the following provisions shall take effect namely :—

Purchase of
lands &c.

1. The Corporation may purchase by agreement but not otherwise the lands described in Part I. of the Schedule to this Order and all buildings and erections thereon.

Extension
of Princes
Parade &c.

2.—(1) The Corporation may appropriate and use the lands described in Part I. of the Schedule to this Order (when the same shall have been purchased) and the lands described in Part II. of the said Schedule (which are the property of the Corporation) for the purpose of extending the Princes Parade and constructing a public highway adjacent thereto and subject

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to the provisions of this Order the provisions of the Local Acts with respect to the Princes Parade shall so far as they are applicable extend and apply to the Princes Parade and the extension authorised by this Order (which parade and extension are hereinafter together referred to as the "Royal Princes Parade").

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(2) The Corporation may construct a suitable underground or other means of communication between the Princes Parade and the extension thereof.

(3) Any appropriation of lands for the purposes of this Article shall be subject to such adjustment of accounts in connection with any loan or the annual charges of any loan outstanding in respect of such lands jointly with any other property as the Minister of Health may direct. Provided that nothing herein contained shall prejudice or affect the security given to any lender for such loans.

3. The Corporation may—

Powers as to
 Royal
 Princes
 Parade.

- (a) Lay out fence and use the Royal Princes Parade as a pleasure ground and for that purpose plant maintain replace or remove trees shrubs and flowers thereon or therefrom;
- (b) Extend alter remove enlarge or improve any existing buildings on the Royal Princes Parade and erect thereon and provide and maintain furnish and equip music and other pavilions concert halls ballrooms conservatories winter gardens band stands shops reading rooms shelters baths lavatories or other buildings and conveniences;
- (c) Let any portion of the Royal Princes Parade or any pavilion or other building thereon to any person for the purpose of entertainments or any other purpose and authorise that person to charge for admission thereto;
- (d) Provide and maintain refreshment rooms on the Royal Princes Parade and either manage such rooms themselves or let them to any person for any term not exceeding three years;
- (e) Provide on the Royal Princes Parade bowling greens tennis courts croquet grounds and spaces for other games and recreations;
- (f) Provide on the Royal Princes Parade any apparatus for games and recreations and charge for the use thereof or let for any term not exceeding three years the right to any person of providing and charging for the use of any apparatus for games and recreations;
- (g) Provide or contribute towards the expenses of any band of music or any musical dramatic or other

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entertainment dance or lecture on the Royal Princes Parade or in the pavilions or other buildings thereon ;

(h) Provide covered and other seats and chairs on the Royal Princes Parade and in the pavilions and buildings thereon and charge for the use of the said seats and chairs or any of them ;

(i) Charge for admission to the Royal Princes Parade and any of the buildings thereon and to the entertainments and amusements to be provided therein and for refreshments and for the use of the bowling greens tennis courts croquet grounds and spaces to be provided for other games and recreations and for programmes of any concert or entertainment held on the lands :

Provided that the Corporation shall not in pursuance of their powers under this Order commence any works requiring the employment of skilled building labour without having first obtained the consent of the Minister of Health to the execution of such work.

Repeal of
sections of Local
Acts.

4. Section 9 of the Act of 1889 and Section 11 of the Act of 1894 are hereby repealed.

Byelaws.

5. The powers of the Corporation under Section 8 of the Act of 1889 (as applied by this Order to the Royal Princes Parade) shall be extended so as to authorise the Corporation to make and enforce byelaws generally for the regulation of that parade.

For pro-
tection of
Bridlington
Gas Com-
pany.

6. The provisions of Section 21 of the Act of 1920 shall apply as if subject to the necessary modifications those provisions were herein re-enacted and in terms made applicable to the purposes of this Order.

Application
of revenue
of Under-
taking.

7.—(1) The Corporation shall keep the accounts in respect of the Royal Princes Parade (in this Article referred to as " the Undertaking ") separate from their other accounts distinguishing therein capital from revenue and shall apply the moneys from time to time received by them by way of revenue from the Undertaking in each year to the following purposes :—

(a) In payment of the working and establishment expenses of the Undertaking and the cost of maintenance of the same ;

(b) In payment of the interest on moneys borrowed or re-borrowed for the purposes of the Undertaking ;

(c) In providing for the discharge of moneys borrowed or re-borrowed for the purposes of the Undertaking ;

(d) In altering and improving any works or buildings in connection with and for the purposes of the Undertaking ;

(e) In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable

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and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-tenth of the aggregate capital expenditure for the time being by the Corporation upon the Undertaking to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the Undertaking or the cost of renewing any furniture apparatus plant fittings and fixtures in connection with the Undertaking or of the works connected therewith and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

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(2) The Corporation shall carry to the district fund of the Borough so much of any balance remaining in any financial year of the moneys received by way of revenue as may in their opinion not be required for the purposes mentioned in the preceding subdivision of this Article.

(3) Any deficiency in the revenue of the Undertaking shall forthwith be made good by the Corporation out of the district fund and general district rate of the Borough.

(4) The Council may with the sanction of the Minister of Health and subject to the provisions of this Order borrow upon the security of the revenue of the Undertaking and of the district fund and general district rate of the Borough or upon either of those securities such sums as may from time to time be necessary for the purposes of this Order.

Borrowing
powers.

8. Any moneys borrowed under this Order shall be repaid within such period or periods not exceeding sixty years from the date of borrowing as the Minister of Health may prescribe and the period so prescribed in respect of any sum borrowed under this Order shall with reference to the repayment of such sum be the prescribed period for the purposes of the Local Loans Act 1875 and of Section 99 of the Act of 1904 as applied by this Order.

Period for
repayment
&c.

9. The provisions of Sections 92 96 98 99 101 102 103 and 106 of the Act of 1904 and Sections 39 41 42 and 47 of the Act of 1920 shall apply as if those provisions were herein re-enacted and in terms made applicable to the moneys borrowed under this Order and otherwise to the purposes of this Order.

Application for
provisions of
Acts of 1904
and 1920 to
borrowing under
and purposes of
this Order.

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Order.
Inquiries
and expenses.

10.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary with reference to the purposes of this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purpose of inquiries directed by the Minister under the Public Health Act 1875.

(2) Where the Minister of Health causes any such inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Minister in relation to that inquiry (including such sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall be paid by the Corporation and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Short title.

11. This Order may be cited as the *Bridlington Order 1924.*

SCHEDULE.

PART I.—PREMISES TO BE ACQUIRED UNDER THIS ORDER.

House and shop known as “Mascotte House” Promenade belonging to or reputed to belong to Mr. T. Messenger which said hereditaments and premises are shown on the plan referred to in Part III. of this Schedule and thereon numbered 1.

Two dwelling-houses and premises known as Nos. 50 and 52 Promenade belonging to or reputed to belong to the Trustees of George Bullock deceased which said hereditaments and premises are shown on the said plan and thereon numbered 2.

One dwelling-house and premises known as No. 54 Promenade belonging to or reputed to belong to Mrs. H. G. Wilbourn which said hereditaments and premises are shown on the said plan and thereon numbered 3.

One dwelling-house and premises known as “Victoria House” belonging to or reputed to belong to the Trustees of R. Harrison deceased which said hereditaments and premises are shown on the said plan and thereon numbered 4.

A piece or parcel of land containing 496 square yards or thereabouts and forming part of the garden ground of the dwelling-house known as “St. Leonards” York Road belonging to or reputed to belong to Miss Louisa Dadley Day which said

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piece or parcel of land is shown on the said plan and thereon numbered 5. A.D. 1924.

A piece or parcel of land containing $41\frac{1}{2}$ square yards or thereabouts forming part of the forecourt of the dwelling-house known as "Beaconscliffe" belonging to or reputed to belong to the Trustees of Mrs. Isabella Copland deceased which said piece or parcel of land is shown on the said plan and thereon numbered 6.

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Order.

All the above-mentioned lands are coloured pink on the said plan.

PART II.—PREMISES ALREADY ACQUIRED BY THE CORPORATION.

Dwelling-house and premises known as Fort Hall situate in Fort Terrace.

Dwelling-house and premises known as No. 1 Victoria Terrace acquired by the Corporation from Mr. T. Messenger.

Three dwelling-houses and premises known as Nos. 56 58 and 60 Promenade acquired by the Corporation from the Trustees of John Waring deceased.

Dwelling-house and premises known as North Cliff House situate in the Promenade acquired by the Corporation from Mrs. Jeanette Harding.

All the above-mentioned lands are coloured green on the plan referred to in Part III. of this Schedule.

PART III.—PLAN.

The plan referred to in Parts I. and II. of this Schedule is a plan in duplicate sealed with the Official Seal of the Minister of Health and marked "Plan referred to in the Bridlington Order 1924" of which duplicate plan one part is deposited in the Offices of the Minister of Health and the other part shall be deposited in the office of the Corporation within fourteen days from the date of this Order.

Given under the Official Seal of the Minister of Health
this Fourth day of April One thousand nine hundred
and twenty-four.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

A.D. 1924.

BOROUGHES OF BRIGHTON AND HOVE.

*Brighton and
Hove (Outfall
Sewers)
Order.*

*Provisional Order for altering certain Local Acts and
Provisional Orders.*

WHEREAS the County Borough of Brighton and the Borough of Hove are urban sanitary districts of each of which the Mayor Aldermen and Burgesses (acting by the Council) are the local authority for the purposes of the Public Health Act 1875;

And whereas the provisions of the Brighton Intercepting and Outfall Sewers Act 1870 as altered by the Hove Commissioners Act 1873 and by the Brighton and Hove (Outfall Sewers) Orders 1888 and 1898 (which were confirmed by the Local Government Board's Provisional Orders Confirmation Acts 1888 (No. 6) and 1898 (No. 9)) are in force in the said Boroughs;

And whereas under the Acts and Orders aforesaid the Brighton Intercepting and Outfall Sewers Board consisting of members elected by the Brighton Corporation and the Hove Corporation respectively have constructed and maintain certain sewers and works;

And whereas the Brighton Corporation and the Hove Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the said Acts and Orders in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the said Acts and Orders shall be altered so that the following provisions shall take effect that is to say:—

Definitions.

1. In this Order—

“The Act of 1870” “the Order of 1888” and “the Order of 1898” mean respectively the Brighton Intercepting and Outfall Sewers Act 1870 the Brighton and Hove (Outfall Sewers) Order 1888 and the Brighton and Hove (Outfall Sewers) Order 1898;

“The Local Acts and Orders” means the said Acts and Orders;

“The Sewers Board” and “rateable value” have the same meanings as in the Act of 1870;

“The Minister” means the Minister of Health;

“The Brighton Corporation” means the Mayor Aldermen and Burgesses of the County Borough of Brighton;

“The Hove Corporation” means the Mayor Aldermen and Burgesses of the Borough of Hove;

“Constituent Authority” means the Brighton Corporation the Hove Corporation and the Council of any district which shall have elected to become a constituent authority of the Sewers Board under the provisions of this Order; A.D. 1924.
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“Constituent area” in relation to a constituent authority means if the constituent authority is an urban sanitary authority the whole of the borough or district of that authority and if the constituent authority is a rural sanitary authority the portion of the district of that authority in respect of which the authority has elected so to become a constituent authority;

“The revenues of the Sewers Board” includes the revenues of the Sewers Board from time to time arising from any sewers lands or other property for the time being belonging to them and any money receivable by them from the constituent authorities;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by Section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Sewers Board.

2.—(1) Subject to the provisions of this Order the Sewers Board may in accordance with such plans and sections as may be approved by the Minister construct and maintain on lands belonging to them and on the shore and bed of the sea:— Power to construct works.

(a) An outfall sewer commencing by a junction with the existing intercepting sewer No. 3 authorised by the Act

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of 1870 at a point 110 yards or thereabouts below high-water mark of ordinary spring tides and terminating at a point 345 yards or thereabouts south-westwards from the said point of commencement;

- (b) A pumping main from the existing penstock chamber to the northern end of the said new outfall sewer;
- (c) A sea defence wall in front of the base of the cliff commencing at the entrance steps on the foreshore connecting with the tunnel leading to the existing penstock chamber and extending to the eastern boundary of the lands of the Sewers Board.

(2) Subject as aforesaid the Sewers Board may also on any lands belonging to them or on the shore or bed of the sea construct and maintain all such outfalls overflows penstocks chambers culverts sewers drains pipes channels sluices ventilating and other shafts manholes syphons engines pumps machinery works buildings and apparatus and conveniences as may be necessary or convenient in connection with or subsidiary to the works authorised by this Order and generally for the purposes of the Local Acts and Orders and this Order.

Works below
high-water
mark not to
be con-
structed
without
consent of
Board of
Trade.

3. The Sewers Board shall not under the powers of this Order construct in on over or under the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the Secretaries or Assistant Secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve in writing under hand as last aforesaid and where any such work may have been constructed the Sewers Board shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this Article the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Sewers Board and the amount of such costs and charges shall be a debt due from the Sewers Board to the Crown and shall be recoverable as a Crown debt or summarily.

Abatement
of work
abandoned
or decayed.

4. If a work constructed by the Sewers Board on in over through or across tidal lands or a tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Sewers Board and the amount of such expense shall be a debt due from the Sewers Board to the Crown and shall be recoverable as a Crown debt or summarily.

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5. In case of injury to or destruction or decay of the works or any part thereof the Sewers Board shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House of Deptford Strond and shall apply to that Corporation for directions as to the means to be taken and the Sewers Board shall be liable to a penalty not exceeding Ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

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Provision against danger to navigation.

6. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Sewers Board to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Crown rights.

7. The new outfall sewer by this Order authorised shall be in substitution for that portion of the existing intercepting sewer No. 3 authorised by the Act of 1870 as is situate to the seaward of the point of commencement of the said new outfall sewer and the Sewers Board may take up and remove that portion of the existing sewer and may utilise sell or dispose of the materials thereof in such manner as they may think fit.

Power to abandon existing works.

8. From and after the completion of the works by this Order authorised the Sewers Board shall keep the same in good repair and condition and shall cause the outfall sewer to be well and sufficiently flushed and ventilated.

New works to be kept in repair.

9.—(1) The Sewers Board may use electricity for the purpose of pumping sewage or for any other purposes of the Local Acts and Orders and this Order and may erect lay down or place and maintain on over or under any lands for the time being belonging to them mains lines works and apparatus for transforming transmitting and using electricity accordingly and may contract with the Brighton Corporation or any other authority company or person for the supply of electricity on such terms and conditions as may be agreed.

Power to use electricity.

(2) Any mains lines works and apparatus for transforming transmitting and using electricity erected laid down placed or maintained by the Sewers Board under the provisions of this Order shall not be constructed maintained or used in such manner as to interfere with or be likely to interfere with any

For protection of the Postmaster General.

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to or used by the Postmaster General or with telegraphic
communication by means of such line.

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Order.

Lands.

10.—(1) The Sewers Board (in addition to any lands acquired by them under the Local Acts and Orders) may by agreement purchase take on lease or otherwise acquire any further lands not exceeding ten acres in the whole and hold and use the same for the purposes of the Local Acts and Orders and this Order Provided that the Sewers Board shall not create or permit the creation or continuance of any nuisance on any lands held under this provision nor erect any buildings thereon except offices and dwellings for persons in their employ and such buildings and works as may be incidental to or connected with the purposes of the Local Acts and Orders and this Order.

(2) Notwithstanding anything in the Lands Clauses Acts or in the Local Acts and Orders or this Order the Sewers Board may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of (in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form) any lands or any interest therein acquired by them under the Local Acts and Orders or this Order and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

(3) Section 22 of the Act of 1870 is hereby repealed.

Additional
borrowing
powers.

11.—(1) The Sewers Board may from time to time for the purposes of the Local Acts and Orders and this Order borrow at interest with the sanction of the Minister any sum or sums in addition to the sum of One hundred and thirty-four thousand five hundred pounds authorised to be borrowed by the Local Acts and Orders.

(2) All moneys borrowed under this Order shall be repaid within such period as may be prescribed by the Minister.

(3) In order to secure the repayment of any money borrowed under this Order and the payment of interest thereon the Sewers Board may mortgage or charge the revenues of the Sewers Board.

Mode of
raising
money.

12.—(1) For the purpose of raising money under the powers of this Order the provisions of the Local Loans Act 1875 shall be available to the Sewers Board and Sections 236 to 238 (both

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inclusive) of the Public Health Act 1875 shall apply to all moneys raised and borrowed on mortgage by virtue of this Order. Provided that the provisions of this Order relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of Section 15 of that Act.

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(2) All mortgages debentures or annuity certificates granted or issued by the Sewers Board under any statutory borrowing power shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the granting or issue of the security or on any other account whatsoever.

13. The Sewers Board shall repay all moneys borrowed by them on mortgage under the powers of this Order either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments or by half-yearly payments to the sinking fund within six months of the date of borrowing.

Mode of
repayment
of money
borrowed.

14.—(1) If the Sewers Board determine to repay by means of a sinking fund any moneys borrowed by virtue of this Order such sinking fund shall be formed and maintained either :

Sinking
fund.

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a "non-accumulating sinking fund"; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at the rate of three pounds ten shillings per centum per annum (or such other rate as the Minister may from time to time authorise) will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Sewers Board being at liberty from time to time to vary and transpose such investments.

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(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Sewers Board towards the equal annual payments to the fund.

(4) The Sewers Board may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Sewers Board shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Sewers Board.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Order shall be paid by the Sewers Board in addition to the payments provided for by this Order.

(7) If it appears to the Sewers Board at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Sewers Board to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister that any such increase is necessary the Sewers Board shall increase the payments to such extent as the Minister may direct.

(8) If the Sewers Board desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister

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be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Sewers Board may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

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(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Sewers Board may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Sewers Board with the consent of the Minister may determine.

15. Subdivisions (2) and (3) of Article IX. and Article X. of the Order of 1898 shall extend and apply to any moneys borrowed under the powers of this Order and to any sinking fund formed with respect to those moneys as if the said provisions were re-enacted in this Order with any necessary modifications.

Application of provisions of Order of 1898.

16.—(1) Where the Sewers Board are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of moneys borrowed and charged upon all the revenues of the Sewers Board and not shown by the deed to be raised in the exercise of a particular borrowing power specified therein.

Power to use sinking fund instead of borrowing.

(2) The Sewers Board when exercising the powers conferred on them by this Article shall—

(a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(b) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

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(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The Sewers Board shall furnish all such information (if any) to the Minister with respect to the exercise of the powers contained in this Article as the Minister shall require.

Protection
of lender
from inquiry.

17. A person lending money to the Sewers Board under the Local Acts and Orders or this Order shall not be bound to inquire as to the observance by the Sewers Board of any of the provisions of those Acts or Orders or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Sewers
Board not to
regard trusts.

18. The Sewers Board shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages or books of the Sewers Board shall be a sufficient discharge to the Sewers Board in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Sewers Board have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Appoint-
ment of a
receiver.

19.—(1) Any mortgagee of the Sewers Board by virtue of the Local Acts and Orders or this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

(3) Section 54 of the Act of 1870 and Article XI. of the Order of 1898 are hereby repealed.

Power to
re-borrow.

20.—(1) The Sewers Board shall have power:—

(a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing powers which are intended to be forthwith repaid; or

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(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Sewers Board in repaying moneys previously borrowed under any statutory borrowing powers and which at the time of such repayment it was intended to replace by borrowed moneys.

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(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Sewers Board shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Sewers Board shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) By instalments or annual payments; or
- (b) By means of a sinking fund; or
- (c) Out of moneys derived from the sale of land; or
- (d) Out of any capital moneys properly applicable to the purpose of repayment other than moneys borrowed for that purpose.

(5) Section 52 of the Act of 1870 subdivision (6) of Article II. of the Order of 1888 and Article VIII. of the Order of 1898 are hereby repealed.

21. When under the provisions of any Act of Parliament or of any Order having the force of an Act of Parliament whether passed confirmed or made before or after the passing of the Act confirming this Order the Sewers Board are empowered or required to form a sinking fund for the repayment of moneys borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Power to
invest all
sinking
funds in
statutory
securities.

22. Sections 5 to 7 56 62 66 to 80 and 87 to 91 of the Act of 1870 and Section 61 of the Hove Commissioners Act 1873 are hereby repealed.

23. Notwithstanding the repeal of the enactments repealed by this Order—

- (1) The Sewers Board shall continue incorporated by the name of the Brighton Intercepting and Outfall Sewers

Sewers
Board to
continue
incorporated.

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Board with perpetual succession and a common seal and power to purchase take hold and dispose of lands for the purposes of the Local Acts and Orders and this Order :

(2) The sewers lands and other property of the Sewers Board as existing immediately before such repeal shall continue vested in the Sewers Board and be held and enjoyed by them subject to the provisions of the Local Acts and Orders and this Order :

(3) The several persons who were members officers or auditors of the Sewers Board at the date of the passing of the Act confirming this Order shall continue to be members officers or auditors (as the case may be) of the Sewers Board subject to the provisions of the Act of 1870 and this Order.

Appoint-
ment of
members of
Board.

24.—(1) After the first day of November Nineteen hundred and twenty-four each constituent authority for the time being shall be entitled to appoint one member of the Sewers Board in respect of every fifty thousand pounds of the rateable value of the constituent area of that authority fractions of fifty thousand pounds being reckoned as fifty thousand pounds.

(2) Each constituent authority shall at their first meeting to be held in the month of November in every year or at some adjournment thereof appoint from their body such number of members of the Sewers Board as they are for the time being entitled to appoint under the provisions of this Article so that all the members of the Sewers Board shall be appointed annually Provided that if any constituent authority fail to make such appointment it shall be competent nevertheless for the other members of the Sewers Board to carry into execution the provisions of the Local Acts and Orders and this Order.

Other local
authorities
may become
constituent
members of
the Board.

25.—(1) At any time after the passing of the Act confirming this Order the Council of any urban or rural district in which any part of the sewers belonging to the Sewers Board are situate may give notice to the Sewers Board that they elect to become a constituent authority of the Sewers Board and if the Council giving the notice is a rural district council they shall state in the notice whether the whole or a particular part of their district is to be the constituent area of the Council for the purposes of the Local Acts and Orders and this Order.

(2) In the event of any such notice being so given the Council giving the notice shall as from the first day of November next following the giving of the notice become and be a constituent authority of the Sewers Board and the borough or district of the Council (if an urban sanitary authority) and the district or part of the district stated in the notice of the Council (if a rural sani-

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tary authority) shall become and be the constituent area of the Council for the purposes of the Local Acts and Orders and this Order and all the provisions of such Acts and Orders shall be applicable to the Council and their constituent area accordingly.

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—
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Hove (Outfall
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Order.*

(3) A constituent authority being a rural district council may (if the constituent area of the authority comprises a part only of their district) at any time by notice to the Sewers Board declare a further part of their district to be included in their constituent area and such notice shall take effect as from the first day of November next following the giving thereof.

26. Each constituent authority shall be entitled to appoint one auditor of the Sewers Board and if more than one constituent authority shall appoint the same person as auditor that person shall elect for which of the constituent authorities who shall so have appointed him he will act as auditor and the other constituent authority or each of the other constituent authorities (as the case may be) shall be entitled to appoint another auditor. Auditors.

27.—(1) Subject to the provisions of Section 57 of the Act of 1870 with respect to the costs and expenses of any special work or special contract executed or entered into thereunder all costs and expenses incurred by the Sewers Board under the provisions of the Local Acts and Orders and of this Order (other than expenses payable out of borrowed money but including all loan charges and interest payable on any mortgages granted or moneys borrowed by them) shall be defrayed out of a common fund to be contributed by the constituent authorities in proportion to the rateable value of each constituent area. As to payment of expenses of Sewers Board.

(2) The words in Section 59 of the Act of 1870 “in the proportions in which they are by this Act required to bear the costs and expenses incurred by the Sewers Board in carrying this Act into execution” shall be deemed to mean in proportion to the rateable value of each constituent area as defined in this Order.

28. Any contribution due from a constituent authority to the Sewers Board under any requisition made under Section 60 of the Act of 1870 shall be paid if due from an urban sanitary authority out of the district fund and general district rate of the borough or district of the authority which fund and rate are hereby charged with the payment of the same accordingly and if due from a rural sanitary authority as special expenses within the meaning of Section 229 of the Public Health Act 1875 chargeable on the constituent area of the authority and the constituent authorities respectively are hereby authorised and required to make and levy any rate or issue any precept that may be necessary for the payment of their respective contributions. As to payment of contribution payable by constituent authorities.

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—
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Hove (Outfall
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Order.*

Application
of provisions
of Public
Health Acts.

29.—(1) For the purposes of the Local Acts and Orders and this Order the following enactments shall apply and the Sewers Board shall for the said purposes have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an urban sanitary authority under the said enactments so far as the same are applicable that is to say :—

Of the Public Health Act 1875—

Section 18 (As to alteration and discontinuance of sewers);
Sections 176 297 298 and 303 (As to purchase of land and
Provisional Orders); and

Of the Public Health Acts Amendment Act 1890—

Sections 16 and 17 (As to matters not to be passed into
sewers);

and in the construction of such enactments the combined area of the constituent areas of the constituent authorities for the time being shall be deemed to be the district of a local authority and the Sewers Board to be the local authority for such district Provided that nothing in this Article shall affect the powers of any constituent authority with reference to sewers (other than the intercepting and outfall sewers and other works authorised by the Local Acts and Orders and this Order) or to any other works required for the sewerage of the borough or district of any of the constituent authorities and not for that of any other of the constituent authorities :

Provided also that the Sewers Board shall not exercise the powers conferred upon them by this Article under Section 18 of the Public Health Act 1875 except with the consent of the local authority within whose area is situate the sewer proposed to be altered or discontinued :

Provided further that the Sewers Board shall not make any application to the Minister of Health for the issue of a Provisional Order under either Section 176 or Section 303 of the Public Health Act 1875 except with the consents of the Brighton Corporation and the Hove Corporation.

(2) The powers by this Article conferred upon the Sewers Board shall be in addition to and not in derogation from the powers conferred upon them by the Local Acts and Orders or by other Articles of this Order.

Miscel-
laneous
amendments
of Act of
1870.

30.—(1) The words “ the Brighton Corporation ” are hereby substituted for the expressions “ the Brighton Local Board ” and “ the Local Board ” in the Act of 1870 wherever either of those expressions occurs.

(2) The words “ the Hove Corporation ” are hereby substituted for the several expressions “ the West Hove Commissioners ” “ the Brunswick Square and Terrace Commissioners ” and “ the Commissioners ” in the Act of 1870 wherever any of those expressions occurs:

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(3) The expression "Local Authority" in the Act of 1870 shall be deemed to mean and apply only to the Brighton Corporation the Hove Corporation and any Council who may become a constituent authority of the Sewers Board under the provisions of this Order and the expression "Local Authorities" shall be deemed to mean and apply only to these authorities or any two or more of them as the case may require.

A.D. 1924.

—
*Brighton and
Hove (Outfall
Sewers)
Order.*

(4) For the purposes of Sections 81 to 86 of the Act of 1870 the district of a local authority shall mean the constituent area of a constituent authority.

31. All costs charges and expenses incurred by the Brighton Corporation or the Hove Corporation of and incident to the preparation making and confirmation of this Order or otherwise in relation thereto shall in the first instance be paid by the Corporation who shall have incurred the same but shall be repaid to such Corporation by the Sewers Board out of the first moneys which shall come into the hands of the Sewers Board after the passing of the Act confirming this Order and in preference to all other charges.

Costs of
Order.

32. Where the Minister of Health causes any local inquiry to be held with reference to any of the purposes of the Local Acts and Orders or this Order the costs incurred in relation to that inquiry (including such reasonable sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer engaged in the inquiry) shall be paid by the Sewers Board and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid shall be a debt due to the Crown.

Inquiries
and ex-
penses.

33. For the protection of the East Sussex County Council (in this section called "the County Council") the following provisions shall apply and have effect unless otherwise agreed between the County Council and the Sewers Board in writing under their respective common seals (that is to say):—

For protec-
tion of East
Sussex
County
Council.

The Sewers Board shall not under the powers of this Order use or interfere with any lands property or works of the County Council except with the consent of the County Council and under such terms and conditions as the County Council may impose in giving any such consent.

34. This Order may be cited as the Brighton and Hove (Outfall Sewers) Order 1924.

Short title.

Given under the Official Seal of the Minister of Health this
Third day of April One thousand nine hundred and
twenty-four.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

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Provisional Orders Confirmation (No. 5) Act, 1924.

A D. 1924.

BOROUGH OF HALIFAX.

*Halifax
Order.*

*Provisional Order for partially repealing and amending
certain Local Acts.*

WHEREAS the Borough of Halifax (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875;

And whereas there are in force in the Borough the unrepealed provisions of certain Local Acts and Provisional Orders duly confirmed by Parliament including the Halifax Improvement Act 1853 the Halifax Park and Improvement Act 1858 the Halifax Corporation Waterworks and Improvement Act 1868 the Halifax Corporation Act 1898 the Halifax Corporation Act 1900 and the Halifax Corporation Act 1902 (each of which Acts is hereinafter referred to as the Act of the year in which it was passed);

And whereas under the provisions of certain of the said Local Acts including the Act of 1853 the Act of 1868 and the Act of 1902 the Corporation are authorised to carry on a market and slaughter-house undertaking and to demand and take in connection therewith certain stallages rents and tolls;

And whereas by Section 126 of the Act of 1900 certain powers were conferred upon the Corporation with respect to the conversion of existing closet accommodation into waterclosets or waste-waterclosets;

And whereas a certain park or pleasure ground known as the People's Park was by an Indenture dated the fourteenth day of August One thousand eight hundred and fifty-seven conveyed to the Corporation on the trusts therein mentioned and by the said Indenture provision was made enabling bands of music to play in the said park on weekdays only;

And whereas by Section 12 of the Act of 1858 the said Indenture was confirmed and provision was made for the observance and enforcement by the Corporation of the provisions thereof;

And whereas by Section 53 of the Act of 1898 and Section 58 of the Act of 1902 provision was made for the payment of bands of music to perform in the parks and recreation grounds belonging to the Corporation but the said Sections do not in any way affect the trusts regulations or provisions contained in the recited Indenture;

And whereas the Corporation have accordingly made application to the Minister of Health for the issue of a Provisional Order

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partially to repeal alter or amend the recited Acts in the manner hereinafter set forth : A.D. 1924.

Halifax
Order.

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of any other powers in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Acts of 1853 1858 1868 1898 1900 and 1902 shall be partially repealed altered and amended so that the following provisions shall take effect that is to say :—

1. The Seventh Schedule to the Act of 1902 is hereby repealed and Section 69 of that Act shall have effect as if the tolls specified in Part I. of the Schedule to this Order were therein referred to instead of the tolls in the said Seventh Schedule but no toll purporting to be a market toll shall be demanded and taken in respect of anything done in the slaughter-houses while this Order is in force. Alteration of slaughter-house tolls.

2. In connection with their market and slaughter-house undertaking the Corporation may demand and take the tolls specified in Part II. of the Schedule to this Order and the provisions of the Act of 1853 shall apply to such tolls as if they were authorised by that Act. Additional tolls.

3. Part I. of the Second Schedule to the Act of 1868 shall be altered by the omission of the words and figures following :— Repeal of certain tolls.

“ And for every bull cow ox steer or heifer if sold s. d.
by the carcase 2 6
And for every sheep calf lamb or pig if sold by the
carcase 1 0
And so on in proportion for every less quantity
than the entire carcase.”
“ From every person standing or walking in any
open space in the market place and exposing
to sale any cutlery hardware mercery small-
ware or goods of any kind per day 0 2 ”

4. The Corporation shall have power with the sanction of the Minister of Health to alter from time to time any stallages rents or tolls to be demanded or taken in the several markets and fairs within the Borough under the said Local Acts as modified or extended by this Order and any such altered stallages rents or tolls as sanctioned by the Minister of Health shall as from the date on which they come into operation be substituted for the corresponding stallages rents or tolls payable under the recited Acts as modified or extended by this Order. Future revision of tolls.

5.—(1) Section 126 of the Act of 1900 shall be altered by the omission from subsection (1) of that Section of the words “ or waste-watercloset ” and by the substitution in the proviso to subsection (2) of that Section of the words “ such part of the Amendment of Section 126 of Act of 1900.

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A.D. 1924.

—
Halifax
Order.

expenses incurred by them (not being less than one-half thereof) as they may consider just and proper according to the circumstances and may recover from the owner the remainder of such expenses ” for the words “ the expenses incurred by them.”

(2) Where in pursuance of Section 126 of the Act of 1900 as amended by this Article existing closet accommodation is converted into a watercloset and the work of conversion is executed under the supervision of an officer of the Corporation to the satisfaction of the Corporation the expenses of such work (including the cost of the construction or alteration of any drain) which are recoverable from the owner under the proviso to the Section aforesaid as amended by this Article shall not as regards any one watercloset exceed the sum of nine pounds and the remainder of such expenses shall be defrayed by the Corporation.

Additional
borrowing
powers for
purposes
of closet
conversion.

6.—(1) In addition to the sum of Two thousand pounds which by paragraph (κ) of Section 167 of the Act of 1900 the Corporation are empowered to borrow for the purposes of closet conversion the Corporation may for the said purposes from time to time borrow such further sums as the Minister of Health may sanction.

(2) The moneys borrowed under subdivision (1) of this Article shall be repaid within such period not exceeding twenty years from the date of borrowing as the Corporation with the sanction of the Minister of Health may determine and the period so determined shall with reference to the repayment of those moneys be the prescribed period for the purposes of the Local Loans Act 1875 and the other provisions applied by the following subdivision of this Article.

(3) The provisions of Sections 34 and 39 of the Halifax Corporation Waterworks Act 1888 Sections 42 and 44 of the Act of 1898 Sections 94 and 95 of the Act of 1902 Section 104 of the Halifax Corporation Act 1911 as amended by Section 51 of the Halifax Corporation Act 1920 shall subject to the necessary modifications extend and apply to the moneys borrowed under this Order.

Bands of
music to
play in the
People's
Park on
Sundays.

7. Notwithstanding anything contained in the recited Indenture or in the Acts of 1858 1898 and 1902 the provisions of Section 53 of the Act of 1898 and of Section 58 of the Act of 1902 (other than the proviso to Section 58) shall apply to the People's Park and the buildings therein in such manner as to enable the Corporation to pay or contribute towards the cost of bands of music to perform therein on Sundays as well as on weekdays subject to such regulations and conditions as the Protector of the Park may approve :

Provided that no bandstand shall be erected or maintained in the said park other than that already existing therein.

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8.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary for the purposes of this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

A.D. 1924.

—
Halifax
Order.

Inquiries
and
expenses.

(2) Where the Minister causes any such inquiry as aforesaid to be held the costs incurred by the Minister in relation to that inquiry (including such reasonable sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall be paid by the Corporation and the Minister may certify the amount of the costs so incurred and the sum so certified and directed by the Minister to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

9. This Order may be cited as the Halifax Order 1924.

Short title.

The SCHEDULE above referred to.

PART I.

Slaughter-House Tolls.

	s.	d.
For every bull cow ox or bullock during the ordinary hours for slaughtering	3	6
For every bull cow ox or bullock after the ordinary hours for slaughtering	4	3
For every calf during the ordinary hours for slaughtering	1	0
For every calf after the ordinary hours for slaughtering...	1	3
For every sheep or lamb during the ordinary hours for slaughtering	0	9
For every sheep or lamb after the ordinary hours for slaughtering	0	10½
For every pig (not being a sucking pig) including a supply of hot water for dressing during the ordinary hours for slaughtering	1	0½
For every pig (not being a sucking pig) including a supply of hot water for dressing after the ordinary hours for slaughtering	1	3
For every other beast during the ordinary hours for slaughtering	1	6
For every other beast after the ordinary hours for slaughtering	2	3

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PART II.

—
Halifax
Order.

Tolls for Lairage at the Slaughter-house. s. d.

For every bull steer cow or heifer per night	...	...	0	6
For every other animal per night	...	...	0	2

Tolls for hanging carcasses in places specially provided for hanging.

A.

For every beast slaughtered on the premises	...	...	2	0
For every beast not slaughtered on the premises	...	...	3	0
For every other animal slaughtered on the premises	...	...	0	6
For every other animal not slaughtered on the premises	...	...	0	9
And so in proportion for every less quantity than the entire carcase.				

B.

By agreement according to space taken.

NOTE.—“ A ” and “ B ” not to be enforceable until the slaughter-houses are reconstructed and places specially provided for hanging.

Given under the Official Seal of the Minister of Health this
 Fourth day of April One thousand nine hundred and
 twenty-four.

(L.S.)

F. L. TURNER

Assistant Secretary Ministry of Health.

Oldham
Order.

BOROUGH OF OLDHAM.

*Provisional Order for altering the Oldham Corporation
 Act 1909.*

WHEREAS the Borough of Oldham is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as “ the Corporation ”) are the local authority for the purposes of the Public Health Act 1875;

And whereas under the provisions of the Oldham Improvement Act 1880 the Oldham Corporation Act 1909 (hereinafter referred to as “ the Act of 1909 ”) and other Local Acts the Corporation carry on a water undertaking and supply water within the Borough of Oldham and certain other areas;

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And whereas by Section 27 of the Act of 1909 provision was made with respect to the price to be charged by the Corporation for the supply of water by measure; A.D. 1924.
—
Oldham
Order.

And whereas by the Oldham Water (Modification of Charges) Order 1923 (hereinafter referred to as "the Order of 1923") the provisions of Section 27 aforesaid were so modified as to authorise the Corporation to increase by not more than fifteen per centum the price chargeable for such supply of water;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to amend the Act of 1909 in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of any other powers in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Act of 1909 shall be amended as follows:—

1.—(1) Section 27 of the Act of 1909 shall be altered and have effect as if for the prices prescribed by that section for a supply of water by measure there were substituted the prices following that is to say:— Prices for supply of water by measure.

Where the quantity taken in any quarter of a year shall not exceed fifty thousand gallons at a rate not exceeding two shillings and elevenpence for every thousand gallons;

And where the quantity taken in any quarter of a year shall exceed fifty thousand gallons and not five hundred thousand gallons then at a rate not exceeding two shillings and twopence for every thousand gallons;

And where the quantity taken in any quarter of a year shall exceed five hundred thousand gallons then at a rate not exceeding one shilling and fivepence halfpenny for every thousand gallons;

The Corporation shall not be compellable to afford a supply by meter for a less sum than seven shillings in any quarter of a year.

(2) The Order of 1923 so far as it relates to Section 27 of the Act of 1909 shall cease to have effect.

2. This Order may be cited as the Oldham (Water) Order Short title. 1924.

Given under the Official Seal of the Minister of Health
this Eighth day of April One thousand nine hundred
and twenty-four.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

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A.D. 1924.

COUNTY OF PEMBROKE.

*County of
Pembroke
Order.*

*Provisional Order made in pursuance of subsection (2)
of Section 69 of the Local Government Act 1888.*

51 & 52 Vict.
c. 41.

WHEREAS the County Council of the Administrative County of Pembroke (hereinafter referred to as "the County Council") propose to borrow with the consent of the Minister of Health and subject to the provisions of the Local Government Act 1888 (hereinafter referred to as "the Act") certain sums of money which if borrowed will together with the total debt of the County Council after deducting the amount of any sinking fund exceed the amount which the County Council are authorised to borrow under the Act;

And whereas the County Council have made application to the Minister of Health for the issue of a Provisional Order to increase the amount which may be borrowed by the County Council as hereinafter mentioned:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 69 of the Act and of any other powers in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect (that is to say):—

Additional
borrowing
powers.

1. Subject to and in accordance with the provisions of the Act the County Council may from time to time borrow such sums as may be required to an amount not exceeding in the aggregate the sum of forty-five thousand pounds in excess of the limit imposed by the provisions of subsection (2) of Section 69 of the Act.

Short title.

2. This Order may be cited as the County of Pembroke Order 1924.

Given under the Official Seal of the Minister of Health
this Second day of April One thousand nine hundred
and twenty-four.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

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FOR

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